

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 15, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**BANK OF AMERICA, N.A. vs. DERRICK L. TURNER; ET AL.
Case No. CL25-04331**

Motion filed by Plaintiff for Judgment on the Pleadings

TENTATIVE RULING

Plaintiff's motion for judgment on the pleadings is denied. Defendant's statement in his Answer that, "Bank of America failed to fulfill its end of the bargain" is a sufficient denial of the essential element of the Plaintiff's performance for a breach of contract action. (*Oasis W. Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

**JANE DOE #1 (J.C.); ET AL. vs. CITY OF FAIRFIELD; ET AL.
Case No. CU25-06196**

FSUSD's Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR TO ADDRESS THE FOLLOWING ISSUES:

1. Whether leave to amend should be granted or not and the impact of any recent discovery.
2. The source of the citation for *Ralph v. City of New Orleans* (1972) 22 Cal.3d.1.

Defendant FAIRFIELD SUISUN UNIFIED SCHOOL DISTRICT (“FSUSD”) demurs to the causes of action against it alleging violation of the Ralph Act, violation of Education Code section 220, and violation of Title IX, 20 U.S.C. § 1681 within Plaintiffs JANE DOE (A.C.) and JANE DOE (J.C.)’s first amended complaint (“1AC”). FSUSD simultaneously moves to strike the complaint’s prayers for attorneys’ fees as against FSUSD. The court notes that the 1AC also asserts negligence against FSUSD, but this cause of action is not included in the instant demurrer. Summarized, the complaint alleges that FSUSD’s employee, contractor, and/or agent Defendant JAMES WILGUENSON LOUIS (“LOUIS”) groomed and made sexual advances on the minor Plaintiffs in 2024 while they were students at FSUSD’s Rodriguez High School, where LOUIS was a School Resource Officer.

Legal Standard. “The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (Holiday Matinee, Inc. v. Rambus, Inc. (2004) 118 Cal.App.4th 1413, 1420.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (Id. at 1098–1099; Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 551 at fn. 5 [ultimate facts sufficient].) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (California Logistics, Inc. v. State of California (2008) 161 Cal.App.4th 242, 247.)

Ralph Act. Plaintiffs’ Ralph Act cause of action is infirm. Plaintiffs do not state conduct that constitutes a Ralph Act violation. The elements of a Ralph Act claim are (1) the defendant threatened or committed violent acts against the plaintiff or his property, (2) a motivating reason for the conduct was the defendant’s perception of the plaintiff’s membership in a protected class, (3) that the plaintiff was harmed, and (4) that the defendant’s conduct was a substantial factor in causing the harm. (CACI 3063; *Austin B. v. Escondido Union School District* (2007) 149 Cal.App.4th 860, 880-881.)

Ramirez v. Wong (2010) 188 Cal.App.4th 1480 (*Ramirez*) is instructive. In *Ramirez*, the plaintiffs sued their landlord, Wong, for a violation of Civil Code Section 51.7, based upon the conduct of Wong’s resident manager, Valdez. The plaintiffs alleged that Valdez entered their apartment, went into the bedroom, removed the plaintiffs’ underwear from a dresser drawer, and sniffed the underwear. (*Id.* at p. 1482.) In affirming the trial court’s ruling sustaining the defendant’s demurrer, the *Ramirez* court explained:

“Plaintiffs contend that a jury should decide whether they “could reasonably fear rape or other sexual attack by [the landlord’s] resident male manager” as a result of his conduct, and that a plaintiff need not be physically present with the defendant in order to state a cause of action under section 51.7 for “intimidation by threat of violence” (§ 51.7, subd. (a).) While the latter point may be correct, the pertinent point is that no threat was made, either in the presence of

plaintiffs or otherwise. Valdez did not express any intention, either by words or conduct, at the time he entered plaintiffs' apartment or at any other time, to inflict injury on plaintiffs or their property. The statute requires violence or a threat of violence; it is, after all, a "hate crimes" statute. (D.C., *supra*, 176 Cal.App.4th at p. 844.) There can be no "threat of violence" without some expression of intent to injure or damage plaintiffs or their property, and there simply was none. (See Webster's 3d New Internat. Dict. (2002) p. 2382 [defining "threat" as involving "an expression of an intention to inflict evil, injury, or damage on another"]; cf. *Coon v. Joseph* (1987) 192 Cal.App.3d 1269, 1277–1278 [237 Cal. Rptr. 873] [no cause of action under § 51.7 where plaintiff alleged his male life partner was verbally and physically assaulted in plaintiff's presence; plaintiff's complaint established "that no violence or intimidation was committed or threatened against [plaintiff's] person and thus no cause of action exists in his own right"].) Again, Valdez's conduct may render him liable for a variety of torts, but it did not violate plaintiffs' right "to be free from any violence, or intimidation by threat of violence" based on their sex or marital status under section 51.7." (*Id.* at 1486-1487.)

In the present case, Plaintiffs have not alleged any facts showing a threat of violence against Plaintiffs. Plaintiffs allege that LOUIS sent them sexually explicit text messages and a photograph of his penis. (1AC at ¶¶ 36.) The alleged conduct is offensive and degrading but does not constitute violence or a threat of violence. LOUIS is alleged to have been employed as both a police officer and a school resource officer but the conduct alleged does not show any threat to utilize his position to force sexual activity with Plaintiffs. As such, Plaintiffs have not alleged a Ralph Act claim on these facts.

Education Code Section 220; Title IX, 20 U.S.C. § 1681. Plaintiffs' claim for harassment and discrimination under California's Education Code section 220 shares its elements with their claim for violation of 20 U.S.C. § 1681. (*Donovan v. Poway Unified School District* (2008) 167 Cal.App.4th 567, 579-581.) These elements are (1) the plaintiff suffered severe, pervasive, and offensive harassment that effectively deprived the plaintiff of equal access to education, (2) the school district had actual knowledge of that harassment, and (3) the school district acted with deliberate indifference in the face of that knowledge. (*Ibid.*)

Plaintiffs do not sufficiently state these elements. The 1AC does not sufficiently state "severe, pervasive, and offensive" harassment that "effectively deprived the plaintiffs of the right of equal access to educational benefits and opportunities." LOUIS's harassing conduct occurred on March 8 and 9, 2024 and consisted of sending a handful of explicit text messages and a graphic photograph. Without diminishing the offensiveness and reprehensibility of LOUIS's alleged conduct, the facts stated cannot be interpreted as "pervasive" harassment when it consisted of some messages sent over two days. (1AC at ¶¶ 36.) The 1AC does not sufficiently state FSUSD's actual knowledge of this harassment. Allegations that FSUSD was warned of LOUIS's unfitness for his position from tips from students and parents do not speak to its actual knowledge of his sexual harassment of Plaintiffs on March 8 and 9, 2024. The 1AC does not sufficiently state FSUSD's deliberate indifference to LOUIS's harassment of Plaintiffs. It states that he

was promptly arrested on March 9, 2024 after sending the graphic communications. (*Id.* at ¶ 39.) Plaintiffs' general allegations that FSUSD did not investigate LOUIS, concealed his conduct from parents and law enforcement, and held him out as trustworthy do not suffice to state deliberate indifference against the specific allegation that LOUIS was swiftly apprehended. (*Id.* at ¶ 178.) There was no window of time in which FSUSD plausibly could have concealed LOUIS's harassment from law enforcement where LOUIS was arrested by law enforcement immediately after engaging in harassment, for example.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc. § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc. § 437, subd. (a).)

With no viable Ralph Act or Title IX claim against FSUSD Plaintiffs state no path to recovery of attorneys' fees against FSUSD.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.)

THE PARTES ARE TO APPEAR TO ADDRESS WHETHER LEAVE TO AMEND SHOULD BE GRANTED OR NOT AND THE IMPACT OF ANY RECENT DISCOVERY.

Conclusion. FSUSD's demurrer is sustained. FSUSD's motion to strike the 1AC's prayer for attorneys' fees against FSUSD is granted. No prayers as regards other defendants are ordered struck at this time.

DGDG 18, LLC vs. EBONAE WEBB-POSEY
Case No. CU25-08730

- 1). Motion by DGDG 18, LLC to Confirm Arbitration Award; and
- 2). Motion by EBONAE WEBB-POSEY to Vacate Arbitration Award

TENTATIVE RULING